

11. 9:00 AM CASE NUMBER: C25-02069
CASE NAME: MATEO TZI TZUL VS. RAYMOND CAMILLUS CLAVIN
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: ANGELA F. STOREY, ESQ.(ADVANCED FROM 10/30/2026 - SEE M/O OF 7/13/2026)**
FILED BY: TZI TZUL, MATEO
TENTATIVE RULING:

The unopposed motion of **Angela Storey, SBN 217942**, to be relieved as counsel for **Plaintiff Mateo Tzi Tzul** is granted.

Cal. Rules of Court Rule No. 3.1362 and Cal. Code of Civ. Proc. § 284(1) and (2) sets forth the standard and procedure to be relieved as counsel of record. The Code permits an attorney to be changed at any time before or after judgment or final determination upon the consent of both client and attorney, or upon order of the court, upon the application of either client or attorney, after notice from one to the other.

Plaintiff's Counsel has complied with the provisions of this rule and statute providing notice to client and supporting his motion with a declaration articulating the reasons for withdrawal.

After reviewing the papers and arguments submitted by counsel and after considering and weighing the prejudice to both sides, and reviewing the relevant statutory and decisional authority, the Court finds that there is good cause to grant the Motion of **Plaintiff Mateo Tzi Tzul's** Counsel to be relieved as counsel of record. This motion is **granted**.

The Court will execute and file the Proposed Order lodged June 9, 2026, Granting Attorney **Angela Storey's** Motion to be Relieved as Counsel (Judicial Council Form MC-053), and listing the appropriate next dates scheduled in the case.

The next date in this case is a Case Management Conference set for December 1, 2026, at 8:30 a.m. in Dept. 32.

The withdrawal is effective upon attorney **Angela Storey's** filing proof of service of signed order on **Plaintiff Mateo Tzi Tzul** and all parties.

12. 9:00 AM CASE NUMBER: C25-02517
CASE NAME: DANVILLE LIVERY & MERCANTILE ASSOCIATES, VS. ASHLEE MORTON
***HEARING ON MOTION IN RE: SET ASIDE AND VACATE DEFAULT**
FILED BY: MORTON , ASHLEE
TENTATIVE RULING:

The parties have stipulated to a continuance of the hearing. The hearing shall be continued to January 22, 2027, at 9:00 a.m. in Dept. 40, Hon. Christopher Bowen.

Parties to take notice that effective January 4, 2027, this case shall be assigned for all purposes to Hon. Christopher Bowen.

13. 9:00 AM CASE NUMBER: C25-03405
CASE NAME: PATRICIA WELLER VS. THEODORE SABERI
HEARING ON DEMURRER TO: TO: 1ST AMENDED COMPLAINT
FILED BY: RIZVI, DOLLY
TENTATIVE RULING:

Defendant Dolly Rizvi's Demurrer to the First Amended Complaint (FAC) is **sustained with leave to amend**. Defendant shall prepare the order pursuant to California Rules of Court, rule 3.1312 and serve and file notice of entry of order. Plaintiff shall have 30 days from the date of service of the notice of entry of order in which to file and serve a second amended complaint.

Background

This case arises out of an alleged physical assault on Plaintiff Patricia Weller while she was a resident at Walnut Creek Willows, a residential care facility for the elderly (RCFE) located at 2015 Diablo Boulevard in Walnut Creek. The facility was owned and operated by Razel and Ruztin, LLC. According to the FAC, Defendant Dolly Rizvi served as the administrator of Walnut Creek Willows in 2018 and is identified in California Department of Social Services (DSS) records as administrator during an annual inspection on June 21, 2023. Defendant Marisol Goco is alleged to have been an administrator charged with overseeing operations and ensuring regulatory compliance, and Defendant Theodore E. Saberi was a co-resident at the facility.

Plaintiff alleges that in 2018, Rizvi authorized Saberi's admission to Walnut Creek Willows even though she knew or should have known that Saberi was ineligible for residency. Specifically, the facility's license restricted admissions to individuals aged 60 and older (whereas Saberi was born in September 1964), and barred individuals with conditions such as paranoid schizophrenia, from which Saberi allegedly suffered. Plaintiff alleges that by admitting Saberi in violation of the facility's license and acuity limits, Rizvi exposed residents such as Plaintiff to an unreasonable risk of harm.

The FAC further alleges that on June 21, 2023, DSS conducted an annual inspection and directed the facility to provide proof of required liability insurance pursuant to Health & Safety Code section 1569.605 by June 28, 2023. The facility failed to do so, and Plaintiff claims it operated without liability insurance from June 28, 2023 through November 15, 2023. Plaintiff alleges that Rizvi and Goco owed fiduciary duties to residents arising from their regulatory responsibilities to ensure compliance with section 1569.605, and that both administrators breached those duties by concealing the lack of insurance from DSS and Plaintiff. Plaintiff alleges that had she known the facility was uninsured, she would have terminated or declined to renew her residence agreement and vacated the facility. Additionally, Plaintiff alleges that Goco committed financial elder abuse by collecting monthly residential fees from July 1, 2023, through November 15, 2023, while knowing the facility was operating out of compliance with statutory insurance mandates.

On November 15, 2023, Saberi allegedly attacked and beat Plaintiff at the facility, causing severe physical and emotional injuries and terminating her residency. Based on these events, the FAC asserts five causes of action against Defendants Theodore Saberi, Dolly Rizvi, and Marisol Goco: (1) intentional tort (battery/assault) against Saberi; (2) breach of fiduciary duty against Rizvi for concealing the lack of liability insurance; (3) negligence against Rizvi for the 2018 admission of Saberi;